

Manoj Kumar Sharma v. State of U.P.

Allahabad High Court · Division Bench · 14 June 2018 · Writ-C No. 21351 of 2018 · **Writ dismissed as withdrawn with liberty to approach CGRF under Clause 7.10.**

HEADNOTE

On the petitioner's prayer after a brief hearing, the Division Bench dismissed the writ as withdrawn and granted liberty to approach the Consumer Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005. The Court did not decide the underlying electricity grievance.

FACTUAL SUMMARY

Manoj Kumar Sharma filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and five others. Counsel for the respondents entered appearance. After a brief submission, the petitioner's counsel sought permission to withdraw the petition, with liberty to take the grievance to the Consumer Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005. The Division Bench granted that permission.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

withdrawal of writ with liberty to CGRF

HOLDING

A writ petition may be dismissed as withdrawn where the consumer seeks, and is granted, liberty to approach the Consumer Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, without a decision on the merits of the grievance. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

On the petitioner's prayer after a brief hearing, the Division Bench dismissed the writ as withdrawn and granted liberty to approach the Consumer Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005. The Court did not decide the underlying electricity grievance. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The petition was withdrawn; the Court did not examine the underlying supply dispute. ¶ 1